



Families First Time Limits

Policy 23.14

Effective: July 1, 2024

Introduction

Families First Assistance Units shall not receive more than sixty (60) total months of Families First benefits.

Scope

The purpose of this policy is to outline the Families First time limit requirements and exceptions.

Policy

Time Limits

1. Families First assistance units (AUs) have eligibility time limits.
2. All AUs are limited to sixty (60) months of Families First assistance in a lifetime. Every month in which an AU receives cash assistance counts toward this limit.
3. The Tennessee Department of Human Services (TDHS) staff will be responsible for ensuring that no AU is terminated from the Families First program prematurely due to time limits. The sixty (60) month time count must be validated prior to beginning the case closure process.

Exceptions

Child Only cases are exempt from the sixty (60) month time limit.

Time Limits

Each month a work incentive payment is received will count toward the caretaker relative's sixty (60) month lifetime limit as outlined in policy [23.14 Families First Time Limits](#).

Countable Months

1. The time limit begins with the first (1st) month an AU receives a cash assistance payment, even if the first (1st) month is a partial month.
2. All months in which a grant is reduced to less than ten dollars (\$10) due to AU income or a Families First recoupment are considered non-countable.

3. Months in which a grant is reduced to less than ten dollars (\$10) due to bankruptcy will be considered countable.
4. Months of Temporary Assistance for Needy Families (TANF) assistance received in another state or territory are countable months.
 - a. Months of TANF assistance received in another state or territory after July 1, 2007, count towards the Families First time limit.
 - b. Months of TANF assistance received in another state or territory before July 1, 2007, will not count for Families First cases that are active as of July 1, 2007 (as long as the case remains open).

Good Cause Time Limit Extensions

1. Up to twenty percent (20%) of the total Families First caseload may receive assistance beyond the sixty (60) month time limit.
2. Good cause must be evaluated for a time limit extension when the AU is approaching the sixty (60) month time limit.
3. Good cause may be granted for the following periods of time when the caretaker reaches the sixty (60) month limit and is exempt from the work requirements or has good cause because he/she is:
 - a. Sixty-five (65) years old or over (indefinitely).
 - b. Disabled (until the disability ends).
 - c. Caring for an in-home disabled relative
 - d. Other hardship conditions discovered by the caseworker.
 - e. Involved in a significant life crisis (two (2) month extension). An extension based on a significant life crisis must be approved by a Families First supervisor and lasts for two (2) months beyond the sixtieth (60th) month. A significant life crisis may include, but is not limited to, the following:
 - i. Eviction from home.
 - ii. Domestic violence.
 - iii. Family crises (such as an illness or death of a family member).
 - iv. Natural disaster.
 - v. Drug treatment.
 - vi. Complications of pregnancy/recent birth.
 - vii. A caretaker currently exempt from the work and/or educational activity for having a child under age one (1).
4. Good cause is deemed to exist if the AU files a timely appeal or has a pending appeal with continuation of benefits. This extension reason is only valid until the appeal is resolved.

Two (2) Parent AUs

The number of countable months for a two (2) parent AU will be the same for both adults.

The number of countable months in a combined two (2) parent AU will be the higher number of months, if the combination of AUs results in one (1) AU. TDHS staff must ensure that the time count for the parent with the lower time count is adjusted correctly.

When an Adult May Have More Than Sixty (60) Months of Eligibility

An adult who has received sixty (60) months of assistance in one (1) AU may receive Families First again only as a Child Only caretaker. The caretaker cannot be included in the AU.

When a Child May Have More Than Sixty (60) Months of Eligibility

1. A child in an AU that reached its time limits can later apply for their own AU as an adult.
2. A child living with a particular caretaker (mother, for example) who loses eligibility due to time limits may be eligible in the future if the child lives in the home of a different caretaker (grandmother, for instance) whose time limits have not expired.

Re-Entry Following Closure for a Sixty (60) Month Time Limit

There are no provisions for re-entry following case closure for time limits.

Supporting Documents

[Families First Time Limits Procedures](#)

[23.11 Families First Child Support Cooperation](#)

[11.18 Transitional Child Care](#)

[Time Limits Desk Guide](#)

Definitions/Acronyms

Term	Definition
Adverse Action Period	The ten (10) calendar day period that begins the date the closure notice is mailed. If the tenth (10 th) day falls on a weekend or holiday, the adverse action period is extended to the following business day.
AU	Assistance Unit
Child Only Cases	Cases with a Supplemental Security Income (SSI) beneficiary as caretaker or a non-parental caretaker who is <i>not</i> included in the Assistance Unit.
Countable Month	Any month an Assistance Unit receives a Families First cash assistance payment.
TANF	Temporary Assistance for Needy Families
TCC	Transitional Child Care
TDHS	Tennessee Department of Human Services
Time Limit	A range of months in which an Assistance Unit will work to achieve self-sufficiency while receiving Families First cash assistance.
Two-parent Households	An Assistance Unit where there are two (2) eligible adults and at least one (1) common child.
TANF	Temporary Assistance for Needy Families
TCC	Transitional Child Care

Supersedes

Policy 23.14 Families First Time Limits effective 10/15/2023

Policy 23.20 Families First Medical Evaluation Unit Referrals effective 07/01/2023

Authority

42 U.S.C § 608(a)(7);

45 C.F.R. § 264.1

Tenn. Code Ann. § 71-3-104(d)

Tenn. Comp. R. & Regs. 1240-1-51-.01

Application

All TDHS Family Assistance Staff and Contractors

Revision History

Date	Version	Location of Change	Description/Reason for Change
06/26/2024	07/01/2024	Policy section	This policy revision removed references to temporary incapacity and MEU.
10/09/2023	10/15/2023	Introduction and Policy Section	Updated language throughout for clarification. Removed procedure information.
11/19/2018	12/01/2018	Policy Section	Policy clarification
12/22/2016	02/01/2017	N/A	New Policy

Approval History

Approved By	Approver Title	Approved Date	Effective Date
Clarence Carter	Commissioner	06/26/2024	07/01/2024
Clarence Carter	Commissioner	10/09/2023	10/15/2023
Danielle Barnes	Commissioner	11/19/2018	12/01/2018
Charles Bryson	Interim Assistant Commissioner	12/22/2016	02/01/2017

Current Approver